

24SMCV03901 24SMCV03901

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-16

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This is an application by defendant to continue the trial. The case was filed in August 2024. A case management conference was held on January 22, 2025. At that hearing, the current trial date of September 14, 2026, was set—approximately 20 months out. A mediation completion date of March 1, 2026, was also set. All of these dates were set with the agreement of both parties. Defense counsel states that counsel is new to the case, having been retained in June 2026. Counsel suggests that counsel needs more time to get up to speed, but more particularly, that there has not been sufficient time to do meaningful discovery.

One problem is that the court does not really have a good slot for the case if it does not go forward on September 14, 2026, as planned. The court is not trying to be difficult. The court has about 1300 cases on its docket. The court's trial calendar assumes that 95% of the cases set for trial resolve without a continuance or the need of a trial. That is probably not a low estimate, but it is not really high either. That is why at the CMC the court expressly warned both parties that there would be no continuances absent extraordinary good cause—and that is reflected in the minute order of that date.

There is a second reason.

The fact that discovery is not complete—and apparently has not even begun on the defense side—is hardly a good reason for a continuance. Rather, it appears that the defense simply was not diligent during the year and a half before new counsel was

retained. (The court assumes that written discovery has since been propounded.)

A lack of diligence is not good cause to continue the trial or, for that matter, the discovery cut off.

The court will inquire of the parties as to the trial estimate. Defendant's estimate at the CMC was 2 days. (Plaintiff had estimated 7 days.) The court's inclination is to DENY the motion.